Ordinance 6: Wimbishville Insulin Affordability and Public Health Act

A Bill to reduce insulin monopolization, lower the cost of insulin, and promote public health in the Town of Wimbishville.

BE IT ENACTED BY THE TOWN COUNCIL OF WIMBISHVILLE HERE ASSEMBLED THAT:

SECTION 1. PURPOSE AND FINDINGS

1. *The Town Council of Wimbishville finds that:*

    - *Insulin is a life-saving medication required daily by residents with diabetes.*
    - *High insulin prices are driven in part by monopolization and restrictive patent practices.*
    - *Excessive insulin costs place financial strain on individuals, families, and the public healthcare system.*
    - *Preventive public health funding can reduce long-term healthcare costs.*

2. *The purpose of this Act is to:*

    - *Increase competition in insulin production.*
    - *Reduce insulin prices for residents of Wimbishville.*
    - *Establish a dedicated funding source to support diabetes care and insulin access.*

SECTION 2. TERMINATION OF INSULIN-RELATED PATENTS

1. *All patents, patent extensions, exclusivity agreements, or other intellectual property protections that directly or indirectly involve insulin shall be considered expired within the jurisdiction of Wimbishville immediately upon passage of this Act.*

2. *No entity may claim exclusive rights to manufacture, modify, distribute, or sell insulin within Wimbishville based on prior patent protections.*

SECTION 3. PROHIBITION ON FUTURE INSULIN PATENTS

1. *No governmental agency, regulatory body, or authority operating under the jurisdiction of Wimbishville shall grant or recognize:*

    - *Any new patent involving insulin.*
      Any modification, reformulation, delivery mechanism, or minor alteration intended to extend exclusivity over insulin.

2. *Insulin shall be treated as an essential public good for the purposes of this Act.*

SECTION 4. PUBLIC HEALTH SUGAR AND SWEETS TAX

1. *A **2% excise tax** is hereby imposed on the retail sale of:*

    - *Candy*
    - *Sugary snacks*
      Confectionery items
      Sweets primarily composed of added sugars(specifically foods with sugar that are 50% of the calories.)

2. *This tax shall be known as the **Wimbishville Public Health Sweets Tax**.*

3. *Revenue collected from this tax shall be deposited into a **Diabetes and Insulin Access Fund**, which shall be used exclusively for:*

    - *Offsetting the cost of insulin for residents*

    - *Supporting diabetes treatment and education programs*

    - *Funding preventive healthcare initiatives related to metabolic health*

SECTION 5. SEVERABILITY

If any provision of this Act is found to be invalid or unenforceable, such invalidity shall not affect the remaining provisions, which shall continue in full force and effect.

SECTION 6. CONFLICTING LAWS

All ordinances, resolutions, or regulations in conflict with this Act are hereby declared null and void to the extent of such conflict.

SECTION 7. EFFECTIVE DATE

*This Act shall take effect **immediately upon passage**.*